

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Marie Seguy	Team: Squad #07	CCRB Case #: 202204792	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/14/2022 1:00 PM	Location of Incident: § 87(2)(b) Street		18 Mo. SOL 1/14/2024		Precinct: 112
Date/Time CV Reported Thu, 07/21/2022 4:06 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 07/21/2022 4:06 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Michael Singh	23949	969369	112 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Izhar Hussain	23050	962490	112 PCT
2. PO Joshua Gebhart	25267	971952	112 PCT
3. SGT Navendra Sumaroo	02556	949705	112 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Michael Singh	Abuse: Police Officer Michael Singh threatened to arrest § 87(2)(b)	A . Substantiated
B . PO Michael Singh	Abuse: Police Officer Michael Singh threatened to arrest § 87(2)(b)	B . Substantiated
C . PO Michael Singh	Abuse: Police Officer Michael Singh threatened to arrest § 87(2)(b)	C . Substantiated

Case Summary

On July 21st, 2022, § 87(2)(b) filed this complaint through the CCRB call processing system (**Board Review 01**).

On July 14th, 2022, at approximately 1:00 p.m., at § 87(2)(b) Street in Queens, § 87(2)(b) called the 112 Precinct to file a complaint regarding animal abuse on behalf of her mother, § 87(2)(b) for an incident that occurred on June 23rd, 2022. PO Michael Singh and PO Joshua Gebhart, both from the 112 Precinct, arrived in front of § 87(2)(b) apartment building to file the complaint and PO Singh threatened to arrest § 87(2)(b) if § 87(2)(b) filed the report (**Allegation A: Abuse of Authority – threat of arrest, substantiated**). PO Singh then threatened to arrest both § 87(2)(b) and § 87(2)(b) if both did not sign a paper saying they no longer needed the police assistance (**Allegation B and C: Abuse of Authority – threat of arrest, substantiated**).

The investigation obtained video surveillance footage from the lobby of § 87(2)(b) Street on July 14th, 2022, which shows § 87(2)(b) and § 87(2)(b) talking outside the building entrance to at least two officers (**Board Review 02**). PO Singh and PO Gebhart's BWC were not activated in this case as the interaction did not fall within the requirement for mandatory activation as listed in the Patrol Guide 212-123 at that time. The investigation also obtained Body-Worn Cameras from January 30th, 2022, for an incident where § 87(2)(b) tried to file a criminal complaint, but PO Singh did not process it, which had many parallels to the incident on July 14, 2022 (**Board Review 03**).

Findings and Recommendations

§ 87(2)(b) was interviewed over the phone on July 26th, 2022 (**Board Review 04**).

§ 87(2)(b) was interviewed over the phone on August 15th, 2022 (**Board Review 05**).

PO Singh was interviewed in person at the CCRB on September 12th, 2022 (**Board Review 06**).

PO Gebhart was interviewed in person at the CCRB on September 21st, 2022 (**Board Review 07**).

Sgt. Sumaroo was interviewed in person at the CCRB on September 27th, 2022 (**Board Review 08**).

Allegation (A) Abuse of Authority: Police Officer Michael Singh threatened to arrest § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Michael Singh threatened to arrest § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Michael Singh threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that on July 14th, 2022, early in the afternoon, she called the 112 Precinct and spoke to Sergeant Hussain to file a complaint regarding an incident that took place on June 23rd, 2022, during which an individual abused her dog and physically assaulted her mother, § 87(2)(b) [although there is a PO Ishar Hussain, there is no Sergeant Hussain at the 112 Precinct]. The member of service on the phone told § 87(2)(b) that he would send PO Singh to file the report for her.

§ 87(2)(b) knew PO Singh from a past interaction that happened on January 30th, 2022, at the same location, during which PO Singh refused to file a report for her against her superintendent and during which Sgt. Sumaroo had to come to § 87(2)(b) apartment and told PO Singh to file the report for § 87(2)(b).

On July 14th, 2022, when PO Singh and his partner arrived at the location, § 87(2)(b) was waiting for them outside her building when PO Singh started by saying that he knew her [although PO Singh could not remember during his official statement, the investigation determined from the BWC from the previous incident that he had interacted with § 87(2)(b) in the past]. § 87(2)(b) then explained multiple times that an individual abused § 87(2)(b) dog and hurt her mother on June 23rd, so she wanted to file a complaint against this individual. However, PO Singh told § 87(2)(b) that if she made the complaint, then they would arrest her mother, which § 87(2)(b) felt like an intimidation tactic to convince her not to file a criminal complaint.

Shortly after the beginning of their conversation, PO Singh called his supervisor who, according to what PO Singh said to § 87(2)(b) told him not to take the report. About 10 minutes after the officers arrived, § 87(2)(b) came outside and tried to explain the incident herself to PO Singh who would not listen. § 87(2)(b)

§ 87(2)(b) also offered to show pictures of the dog and her mother's injuries, but PO Singh refused to look at them.

§ 87(2)(b) explained in her statement that toward the end of the interaction, PO Singh asked for § 87(2)(b) ID and took a picture of her license and passport and then told both § 87(2)(b) and § 87(2)(b) to sign a document. Neither § 87(2)(b) nor § 87(2)(b) understood what the document was, but PO Singh said it was to affirm they no longer needed the police assistance. Although neither § 87(2)(b) nor § 87(2)(b) wanted to sign the document, PO Singh told both of them to sign it or they would get arrested.

§ 87(2)(b) statement was consistent with § 87(2)(b) statement and allegations, noting that PO Singh did not want to listen to her description of the incident that took place on June 23rd, 2022, and that PO Singh said multiple times, "You are going to be arrested."

On July 20th, 2022, § 87(2)(b) went to the 112 Precinct in person and asked to file a report regarding the incident that occurred on June 23rd, 2022. § 87(2)(b) was able to speak with Lieutenant Gebler and PO Ha about the situation, who helped her successfully file the report on behalf of her mother. The complaint report, filed by PO Ha Yaejee, indicates "At tpo cv states above listed perp did push cv after a verbal disagreement regarding the care of a cv dog. No injuries sustained" (**Board Review 09**).

Surveillance footage video was obtained in the investigation from the superintendent of the building in which § 87(2)(b) lives, at § 87(2)(b) Street, which appears to be a motion sensor surveillance camera that records the inside of the lobby of the building (**Board Review 02**). Considering the incident took place outside of the lobby's entrance, only parts of the conversation can be heard and not very clearly. The video starts when § 87(2)(b) is outside with two officers and her mother, § 87(2)(b) who is going back and forth between the lobby and the outside. At timestamp 00m19s of the surveillance video from the lobby, PO Singh asks, "So, will you sign this document saying that you do not need the police anymore?" then add "both of you are going to have to sign." Then, both § 87(2)(b) and § 87(2)(b) say "Ok, I will sign it" and "Fine." The video does not show PO Singh taking pictures of § 87(2)(b) passport although it is in his memo book.

At timestamp 01m28s PO Singh (PO Gebhart recognized his voice) can be heard saying, "like I said if you are going to file it" then the end of the sentence is not audible until 01m37s when PO Singh says, "from what I am hearing" before § 87(2)(b) mentions, "I showed you the pictures. Everything" right after. The conversation is then hard to hear, but PO Singh mentions at 02m16s, "if you want us to work out like that" and then at 02m42s, "I can take the report" to which § 87(2)(b) answers, "Not if [inaudible] arrest her." Later in the interaction, at timestamp 02m50s, it is not entirely clear, but it appears as if PO Singh says, "you are going to be arrested" and says at 02m52s, "I will tell you right now" before saying again, while unclear, "I will have to arrest you" at timestamp 02m56s. When presented with this video, PO Singh could not hear himself say this and mentioned that he did not know why he would have said that.

During his official statement, PO Singh did not recall the incident very well but confirmed that § 87(2)(b) had an issue regarding an incident that took place days prior with allegations of animal abuse and physical dispute. PO Singh's statement was inconsistent as he first mentioned that § 87(2)(b) did not want to file a complaint and then said that she wanted to file a complaint about an assault from the dog-sitter against her mother, § 87(2)(b). PO Singh also first claimed it was a civil matter, then said it was an ASPCA matter, then mentioned that no animal abuse occurred. Finally, PO Singh explained to § 87(2)(b) that they could investigate the matter but that would mean talking to the dog-sitter and potentially penalizing § 87(2)(b) for theft of service. PO Singh stated that he did not say that § 87(2)(b) could be arrested but gave the potential outcomes after which § 87(2)(b) and § 87(2)(b) did not want to file a complaint anymore.

PO Singh also explained during his official statement that § 87(2)(b) accused the dog-sitter of both animal abuse and assault on her mother, but he determined that § 87(2)(b) story was not consistent with her accusations, so he decided not to file a report. PO Singh did not believe that the dog-sitter was abusing the animal based on § 87(2)(b) story. PO Singh stated that he called his supervisor, Sgt. Sumaroo, for assistance, but could not remember why specifically. Sgt. Sumaroo never came to the location that day.

PO Singh mentioned that § 87(2)(b) showed PO Singh an injury on her mother's arm, but it was not consistent with her story that § 87(2)(b) was shoved by the dog-sitter according to PO Singh, so he decided not to file a complaint regarding this alleged assault. PO Singh could not recall if § 87(2)(b) offered to show pictures of her mother's injuries. PO Singh also did not recall if § 87(2)(b) wanted to file a report regarding her mother being shoved. PO Singh did not recall if he had ever interacted with either § 87(2)(b) or § 87(2)(b) prior to this incident.

PO Singh stated that he asked § 87(2)(b) and § 87(2)(b) to sign his memo book as an additional guarantee that he completed his task at this location, but never said to the civilians that it was mandatory (**Board Review 10**). According to him, both § 87(2)(b) and § 87(2)(b) voluntarily signed the document.

In his official statement, Sgt. Sumaroo stated that he had no recollection of that incident and that he was not called on July 14th, 2022, by PO Singh and PO Gebhart in regards to this incident although he was their supervisor sergeant that day. Sgt. Sumaroo explained that to file a complaint regarding animal abuse, the officers would probably need to see the animal, but the officers must file a complaint when a civilian alleges assault and shows signs of injuries. Considering PO Singh admitted having seen the injury, he should have filed a complaint regardless of the injury inconsistency with "being shoved." Sgt. Sumaroo also stated that it is not common practice for officers to make civilians sign their memo book to confirm that the civilian no longer need police assistance.

PO Gebhart could not recall much from the incident as he explained that he was five or six feet away from § 87(2)(b) and PO Singh and thus that he could not hear the conversation well. PO Gebhart explained that PO Singh called their supervisor, Sgt. Sumaroo, about 30 seconds after being at the location. PO Gebhart stated that he heard the word "arrest" as well as "payment services" but didn't know in which context. Nonetheless, PO Gebhart knew that § 87(2)(b) wanted to file a complaint about animal abuse and an assault on her mother. PO Gebhart did not see the injury on § 87(2)(b) arm when she showed her arm but stated in his official statement that he believed they could not file a report because the incident happened too long ago. PO Gebhart also stated that both signed the document voluntarily and that PO Singh did not threaten to arrest either of them. PO Gebhart left the location not knowing why they did not file a complaint for § 87(2)(b) although they were originally assigned to this location to file a complaint. PO Gebhart said that PO Singh told him that he had been to § 87(2)(b) Street before but did not recall any additional information that PO Singh might have given him regarding § 87(2)(b) or the location.

The BWC obtained from January 30th, 2022, at the same location, § 87(2)(b) Street, with § 87(2)(b) and § 87(2)(b) involving PO Singh as the main officer as well as PO Gebhart and Sgt. Sumaroo presents the same issue (**Board review 03**). On the BWC, § 87(2)(b) wants to file a report against her superintendent, but PO Singh determines that he cannot because there are not enough reasons to file a criminal complaint, so he calls Sgt. Sumaroo on the demand of § 87(2)(b). Sgt. Sumaroo makes PO Singh file the report for § 87(2)(b) (**Board Review 11**).

Patrol Guide 207-01 in regards to the Complaint Reporting Systems defines a complaint as "an allegation of an unlawful or improper act or omission, or other conditions that necessitates investigation to determine if any unlawful act or omission occurred." The Patrol Guide goes on to note that "Proper complaint reporting is essential for statistical analysis, discovery of crime patterns and trends, efficient deployment of resources, and uniform crime reporting. Every member of the service involved in this process has a responsibility and obligation to ensure the integrity of this vital, strategic resource (**Board Review 12**).

§ 87(2)(g)
As noted in the BWC from January 30th, 2022, PO Singh has refused to take a criminal complaint from § 87(2)(b) in the past regarding another issue and was ultimately overruled by his supervisor who eventually made him take the criminal report. § 87(2)(g)

§ 87(2)(g) the video captures PO Singh saying, “I will have to arrest you,” § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 14**).
- Police Officer Michael Singh has been a member of service for two years and this is the first CCRB complaint to which he has been a party (**Board Review 15**).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 11th, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 16**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator: Marie Seguy Investigator Marie Seguy November 15th, 2022
Signature Print Title & Name Date

Squad Leader: Manager Vanessa Rosen November 15, 2022
Signature Print Title & Name Date

CCRB Case # 202204792

Reviewer: _____
Signature Print Title & Name Date